

24NNCV06899 24NNCV06899

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Case Number: 24NNCV06899 Hearing Date: August 7, 2026 Dept: D

TENTATIVE RULING

Calendar: 6

Date: August 7, 2026

Case No: 24NNCV06899 Trial Date: July 6, 2027

Case Name: Gleason v. City of Los Angeles, et al.

MOTIONS TO COMPEL FURTHER

Moving Party: Defendant/Cross-Complainant, The Roman Catholic Archbishop of Los Angeles, a corporation

Responding Party: Defendant/Cross-Complainant, City of Los Angeles

RELIEF REQUESTED:

Compel City of Los Angeles to provide further responses to Special Interrogatories Nos. 55, 56, 59 and 60, and request for sanctions.

Compel City of Los Angeles to provide further responses to Requests for Production Nos. 39, 40, 41, 42, 43 and 44, and request for sanctions.

CAUSES OF ACTION: from Complaint

1) Dangerous Condition of Public Property

2) Negligence / Statutory Liability

3) Premises Liability

CAUSES OF ACTION: from Cross-Complaint by the City of Los Angeles

1) Indemnification

2) Apportionment of Fault

3) Declaratory Relief

CAUSES OF ACTION: from Cross-Complaint by The Roman Catholic Archbishop of Los Angeles

1) Implied Indemnity

2) Equitable Indemnity / Apportionment

3) Contribution

4) Declaratory Relief

SUMMARY OF FACTS:

Plaintiff Elizabeth Gleason ("Plaintiff") alleges that on July 25, 2024, while walking on the sidewalk at or near 13001 Victory Blvd, in North Hollywood, California, she tripped on uneven pavement, fell, and sustained severe injuries.

ANALYSIS:

A motion to compel a further response is used when a party gives unsatisfactory answers or makes untenable objections to interrogatories, demands to produce, or requests for admission. (CCP, § 2031.310, subd. (a); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403.)

Compel Further Responses to Special Interrogatories

To compel a further response to interrogatories, the movant can show that: (1) the responding party's answer to a particular interrogatory is evasive or incomplete (CCP, § 2030.300, subd. (a)(1)); (2) the responding party's exercise of the option to produce documents in response to an interrogatory was unwarranted or the required specification of those documents was inadequate (CCP, § 2030.300, subd. (a)(2)); and (3) the responding party's objection to an interrogatory is without merit or too general (CCP, § 2030.300, subd. (a)(3); see, e.g., *Williams v. Superior Court* (2017) 3 Cal.5th 531, 550 [defendant's argument that plaintiff was required to establish good cause or prove merits of underlying claim before propounding interrogatories without merit]).

The Roman Catholic Archbishop of Los Angeles ("RCALA") moves to compel the City of Los Angeles (the "City") to provide further responses to SROGs Nos. 55, 56, 59, and 60.

Upon review, the City's objections are without merit. The requests are not vague or ambiguous, nor are they overbroad in time or scope. The discovery requested is directly related to the issues central to this litigation. The requests do not appear to seek information which would require expert discovery. The City's "equally available" objection is also improper. The fact that RCALA may also obtain responsive information from a third party does not excuse the City from responding with the information it currently possesses. The only valid basis for this objection is where a party must conduct an independent investigation, such as reviewing public records or interviewing third-party witnesses, in order to answer the interrogatory. (See *Bunnell v. Superior Court* (1967) 254 Cal.App.2d 720, 723–724; *Holguin v. Superior Court* (1972) 22 Cal.App.3d 812, 821.) That situation is not the case here.

SROG No. 55 states: "If YOU contend that The Roman Catholic Archbishop of Los Angeles, a corporation sole, exercised control over the SIDEWALK, state all facts supporting YOUR contention."

SROG No. 59 states: "If YOU contend that The Roman Catholic Archbishop of Los Angeles, a corporation sole, placed bricks inside the tree well where the STREET TREE is planted, state all facts supporting YOUR contention."

To each request the City responds: "Based on information and belief, Defendant City contends that propounding party exercised control over the subject location by putting bricks in the tree wells along Victory Blvd."

This answer is not responsive to the interrogatories. The City must respond with facts supporting its contention based upon the information it has available. If the City lacks information to determine that RCALA exercised control over the sidewalk, or placed bricks inside the tree well, it must say so.

SROG No. 56 states: "If YOU contend that The Roman Catholic Archbishop of Los Angeles, a corporation sole, exercised control over the SIDEWALK, state the name, address, and telephone number of each person with knowledge of facts supporting YOUR contention."

SROG No. 60 states: "If YOU contend that The Roman Catholic Archbishop of Los Angeles, a corporation sole, placed bricks inside the tree well where the STREET TREE is planted, state the name, address, and telephone number of each person with knowledge of facts supporting YOUR contention."

To both requests the City responds: "Defendant City."

This answer is not responsive to the interrogatories. The City must provide a complete response identifying all people who may have knowledge of facts supporting the contention.

Accordingly, the motion to compel further responses to special interrogatories is GRANTED.

Compel Further Responses to Requests for Production

To request further production, a movant must establish: (1) good cause for the production (CCP, § 2031.310, subd. (b)(1); *Sinaiko*, supra, at p. 403); and (2) that a further response is needed because (a) the responding party's statement of compliance with the demand to produce is incomplete (CCP, § 2031.310, subd. (a)(1)), (b) the responding party's representation that it is unable to comply is inadequate, incomplete, or evasive (CCP, § 2031.310, subd. (a)(2)), (c) the responding party's objection in the response is without merit or is too general (CCP, § 2031.310, subd. (a)(3); *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1127), or (d) if the responding party objected to the production of

ESI on the ground that it is not reasonably accessible the movant can show that the (i) ESI is reasonably accessible or (ii) there is good cause for production of the ESI regardless of its accessibility. (CCP, § 2031.310, subd. (e).)

RCALA moves to compel the City to provide further responses to RFPS Nos. 39, 40, 41, 42, 43, and 44.

Upon review, the City's objections are without merit. The requests are not vague or ambiguous, nor are they overbroad in time or scope. The discovery requested is directly related to the issues central to this litigation. The requests do not appear to seek information which would require expert discovery. The City's "equally available" objection is also improper. The fact that RCALA may also obtain the documents from a third party does not excuse the City from responding if such documents are in the City's possession, control or can be obtained through a reasonable and good faith effort. (See Bunnell, *supra*, 254 Cal.App.2d at pp. 723–724; Holguin, *supra*, 22 Cal.App.3d at p. 821.)

RFP No. 39 states: "If YOU contend that The Roman Catholic Archbishop of Los Angeles, a corporation sole, exercised control over the SIDEWALK, produce all DOCUMENTS supporting YOUR contention."

RFP No. 40 states: "If YOU contend that The Roman Catholic Archbishop of Los Angeles, a corporation sole, placed bricks inside the tree well where the STREET TREE is planted, produce all DOCUMENTS supporting YOUR contention."

To both requests the City responds: "Defendant City complies in full with this request by referring propounding party to Google Street View images showing bricks in the tree well of the parkway tree at the subject location."

This response is evasive and incomplete. It is not sufficient to direct the propounding party to Google for the relevant information. The City must specify the writings from which the answer may be derived or ascertained in sufficient detail. (CCP, § 2030.230.) A broad or general reference to a document production is not sufficient. Additionally, "[a]nswers must be complete and responsive. Thus, it is not proper to answer by stating, 'See my deposition,' 'See my pleading,' or 'See the financial statement.' Indeed, if a question does require the responding party to make reference to a pleading or document, the pleading or document should be identified and summarized so the answer is fully responsive to the question." (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771.)

In response to RFPS No. 41, 42, 43, and 44, the City responded with Code-compliant statements of inability to comply. The City states: "A diligent search and a reasonable inquiry has been made in an effort to comply with this demand, and this responding party is unable to comply because the particular item(s) or category has never been in the possession, custody, or control of this responding party and/or responding party is unaware of the existence of any such item(s). Moreover, responding party currently does not know the identities of any other individual or entity who would have such item(s)." This response meets the requirements set forth in CCP section 2031.230.

Accordingly, the motion to compel further responses to requests for production is GRANTED as to RFPS Nos. 39 and 40, and DENIED as to the remaining requests.

Request for Sanctions

The Court must impose monetary sanctions against anyone—party, nonparty, or attorney—who unsuccessfully makes or opposes the motion, unless it finds that the person to be sanctioned acted with substantial justification or other circumstances make the imposition of the sanctions unjust. (CCP §§ 2030.290, subd. (c) [interrogatories], 2031.300, subd. (c) [demand to produce]; Sinaiko, *supra*, 148 Cal.App.4th at 404 [interrogatories and demand to produce].)

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

Even after a party provides discovery responses, a party can keep its motion on calendar and the court has authority to grant sanctions, even if it denies the motion to compel responses “as essentially unnecessary, in whole or in part.” (Sinaiko, supra, 148 Cal.App.4th at 409.)

The burden is on the party subject to sanctions to show substantial justification or injustice. (Mattco Forge, Inc. v. Arthur Young & Co. (1990) 223 Cal.App.3d 1429, 1436.)

RCALA requests sanctions in the amount of \$1,215.87 for the motion to compel further responses to special interrogatories and \$1,053.27 for the motion to compel further responses to requests for production. The amount requested is slightly high given that the hearings on the motions are scheduled concurrently and the motion to compel further requests for production was granted only in part. The sanctions are adjusted accordingly. Sanctions are awarded as follows: 3.0 hours per motion at \$325.00 per hour for total attorney’s fees of \$975.00 for each motion.

RULING:

The Roman Catholic Archbishop of Los Angeles’s Motion to Compel Further Responses to Special Interrogatories is GRANTED. The City of Los Angeles is ordered to serve full, Code-compliant, verified responses, without objections to SROGS Nos. 55, 56, 59, and 60 within 20 days.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney’s fees and costs incurred for the work performed in connection with the pending motion is \$975.00 (3 hours @ \$325/hour) [3.5 hours requested] plus \$78.27 in filing fees [Amount Requested \$1,215.87], which sum is to be awarded in favor of The Roman Catholic Archbishop of Los Angeles, and against The City of Los Angeles and the City’s attorney of record, jointly and severally, payable within 20 days. (CCP, § 2030.300, subd. (d); CRC Rule 3.1348(a).)

The Roman Catholic Archbishop of Los Angeles’s Motion to Compel Further Responses to Requests for Production is GRANTED, as to RFPS Nos. 39 and 40, and DENIED as to the remaining requests. The City of Los Angeles is ordered to serve full, Code-compliant, verified responses, without objections to RFPS Nos. 39 and 40 within 20 days.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney’s fees and costs incurred for the work performed in connection with the pending motion is \$975.00 (3 hours @ \$325/hour) [3.0 hours requested] plus \$78.27 in filing fees [Amount Requested \$1,053.27], which sum is to be awarded in favor of The Roman Catholic Archbishop of Los Angeles, and against The City of Los Angeles and the City’s attorney of record, jointly and severally, payable within 20 days. (CCP, § 2031.310, subd. (h); CRC Rule 3.1348(a).)

Counsel for moving party is ordered to prepare an order for sanctions and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.